

Seminar 10: AI as a tool of governance

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Course overview

1. Introduction (main legal issues associated with AI and key concepts)

2. The risks posed by AI: algorithmic discrimination, hallucinations etc.

3. Governing AI: introduction to theories and principles of regulation

4. Risk-based approach to regulating AI technology: the case of the EU

5. Rights-based approach to governing AI technology

6. Expanding Horizons: A broad look at AI regulation in the UK, China and the US

7. ICO: Personal data and AI

8. AI Lifecycle

9. AI Value Chains

10. AI as a tool of governance (public governance)

+ Summative (Exam)

Key terms and concepts on AI and Law

AI governance and
regulation

Generative AI and
Large Language
Models

AI Ethics

AI hallucination

AI bias and fairness

AI and
Anthropomorphism

AI accountability and
liability

AI transparency and
explainability

AI lifecycle

AI as complex social-
technical systems

Class activity (10 minutes) – Quiz

Quick revision

AI as a tool of governance

Examples of types of AI technologies for governance:

- **Machine Learning (ML)**, which enables systems to learn from data patterns without explicit programming
- **Natural language processing (NLP)**, allowing computers to interpret and respond to human languages
- **Computer vision**, through which machines interpret visual information, like facial recognition
- **Robotics**, combining AI with physical automation to perform tasks traditionally done by humans
- **Predictive analysis**, which helps forecast future scenarios based on historical data
- **Generative AI & Language models**

AI in public governance

Why governments increasingly use AI?

- Public service is facing rising pressures to improve **efficiency and effectiveness**
- AI **enhances authorities' capabilities** in critical areas such as detection of fraud or harmful behaviours, prediction of public service needs, and simulation of policy outcomes before they are implemented – potentially avoiding costly mistakes
- **Availability of large-scale digital data** provides unprecedented opportunities for a more **evidence-based decisions**
- Use of AI to **achieve legal objectives**: identify and tackle deeply rooted structural inequalities and biases, enhance transparency, increase the development of the AI industry

Capabilities of AI in public governance

What abilities AI can bring for governance?

- **Detection**

- AI can significantly enhance the government's ability to **identify, track and manage risks or harmful behaviours**. By leveraging machine learning algorithms and advanced data analytics, government can detect patterns that could otherwise remain hidden or unnoticed.
- **Example:**
- **AI-drive detection systems** can effectively identify online misinformation, hate speech, extremist content.
- AI supports **fraud detection in social welfare programs, tax evasion, and public procurement processes**, enabling authorities to act swiftly and decisively.
- **Facial recognition technologies** are increasingly used for law enforcement and public safety → **although it raises crucial privacy and ethical concerns.**

Capabilities of AI in public governance

What abilities AI can bring for governance?

- **Prediction**

- The use of AI for prediction is particularly valuable in areas such as public health, disaster management, and urban planning.
- **Example:**
- Predictive models can help health authorities forecast disease outbreaks, such as during Covid-19 pandemic, allowing them to allocate resources efficiently and save lives.
- Predictive AI, in transportation planning, assists in optimising traffic flows or public transport schedules, improving urban mobility and reducing congestion.
- **However**, while AI predictions hold great promise, it is important to be mindful of their **limitations, especially concerning accuracy and potential biases** embedded in historical datasets.

Capabilities of AI in public governance

What abilities AI can bring for governance?

- **Simulation**

- AI powered simulations enable governments to test policy decisions virtually, allowing policymakers to foresee potential outcomes and unintended consequences, before implementing them in the real world.
- **Example:**
- Use of agent-based modelling, where AI simulates individual and collective behaviours in response to policy interventions.
- During Covid-19 pandemic, many governments employed AI-driven simulations to evaluate the impact of measures such as lockdowns, social distancing or vaccination strategies → such simulations help governments **to refine policies and minimise adverse effects**.

**What are the main benefits or opportunities of using
AI as a governance tool?**

Benefits and opportunities for AI use

- **Efficiency and automation:**

- By automating repetitive and time-consuming tasks, governments can streamline operations, reduce costs, and free public officials to focus on complex or sensitive issues → e.g., AI powered chatbots can handle basic citizen inquiries swiftly and accurately.

- **Enhanced decision-making:**

- Use of agent-based modelling, where AI simulates individual and collective behaviours in response to policy interventions. E.g., Covid-19 and AI-driven simulations.

- **Improved public service delivery**

- With the capability to analyse vast amounts of data, AI technologies can help governments tailor services to individual citizen needs, improving satisfaction and trust.

- **Increased communication:**

- AI-enabled platforms improve government-citizen communication by providing timely, accurate information, and virtual assistants can offer real-time assistance to citizen.

Benefits and opportunities for AI use

- **Effective risk management:**

- AI helps to detect and manage risks more effectively, such as financial fraud, public safety threats and misinformation.

- **AI-Powered Compliance and Monitoring**

- AI systems can be deployed to automate compliance with data protection regulations, such as the GDPR. AI-driven monitoring tools can continuously scan systems to detect data breaches or unauthorised data access.

- **Improved consent management**

- AI solutions can manage user consent more efficiently and transparently, providing personalised, context-sensitive consent interactions.

- **Privacy by design and default**

- AI enables organisations and governments to embed privacy principles directly into their technological architecture, adhering proactively to 'privacy by design' principles mandated by regulations such as GDPR.

Why can the use of AI in the public sector be more challenging than in the private sector?

Challenges and ethical concerns of AI use

- **Data-related challenges (Fairness and non-discrimination):**
 - Poor-quality data or biased datasets can result in flawed decisions, perpetuating existing inequalities or creating new ones, for example, negatively impacting marginalised groups.
- **Lack of transparency and explainability**
 - Algorithmic opacity poses significant challenges in public governance context, where transparency and accountability are essential. For example, citizens have the right to know why a particular governmental decision was made, especially when it involves sensitive areas, such as welfare distribution and criminal justice.
- **Accountability and liability – privacy and private information disclose**
 - Defining who is responsible when AI systems make mistakes or cause harm is challenging. For example, who is responsible if there is a breach of a citizen's privacy? Is it the public officials who implemented it, the developers who built it, or the AI itself?

Group discussion – Facial Recognition Technologies (5–7 minutes)

- **What is your opinion on the use of FRTs for law enforcement purposes?**
- **What are the main legal concerns?**
- **Can the benefits of using these technologies outweigh the risks?**
- **What legal safeguards can be adopted to mitigate these risks?**

How address these legal and ethical challenges?

- **AI Act (EU)**
- **Article 2(1)(a):** establishes that the AI Act applies to **providers** placing on the market or putting into service an AI system or placing on the market a general-purpose AI model irrespective of where they are located.
 - For example, the definition of GPAI models, underlines that **public authorities**, including EU institutions, bodies and offices can also be providers of AI systems or general-purpose AI models.
- **Article 3(4)** defines **deployer** as the 'natural or legal person, public authority, agency or other body using an AI system under its authority except where the AI system is used in the course of a personal non-professional activity'
- **Annex III defines the following areas as high-risk:**
 - (...) **Biometrics**, provided that the use is permitted under EU or national law
 - **Recital 54:** The area of biometrics qualifies as high-risk considering that 'biometric data constitutes a special category of personal data'

AI Act: examples of prohibited AI practices (Art. 5)

- **Art. 5 (1)(h): Real-Time Remote Biometric ID Systems (for law enforcement)**

- General rule: prohibited in public spaces -> risk of mass surveillance and gross violations of fundamental rights -> e.g., **Recital 19** explicitly qualifies '**prisons and border control**' as spaces that are not publicly accessible
- **Except**, when strictly necessary for:
 - **Searching for specific victims of** abduction, human trafficking, sexual exploitation, or missing persons
 - **Preventing serious and imminent harm:** specific, substantial, and imminent threat to life/safety or genuine and present/foreseeable terrorist threat
 - **Locating or identifying suspects:** for serious offences listed in Annex II or offences punishable for at least 4 years detention/imprisonment in the MS
- It **does not affect GDPR Art. 9 rules for biometric data** (personal data) processed for purposes other than law enforcement.

- **Art. 5 (2): add some safeguards, such as** fundamental rights impact assessment (art. 27) and registration of the system in the EU database (Art. 49)

- **Art. 5 (3): exemptions under Art. 5(1)(h) and (2)** are subject to **a prior authorisation granted** by **a judicial authority** or an **independent administrative authority** (exception: *in a duly justified situation of urgency* – request authorisation within 24h)

- **Art. 5 (5): a Member State law** needs to authorize these systems for these rules to apply

AI Act: Scope Exclusions (National Security & Defence)

- **Art. 2(3) AI Act: AIA does not apply to (...)**
 - Activities **outside the scope of EU law** and **Member States' national security competences**.
 - Broad National security exemption?
 - ***La Quadrature du Net (CJEU)* defines national security:** protection of the **essential functions of the State** and prevention of activities that **seriously destabilise** the State's constitutional, political, economic, or social structures (e.g. terrorism).
 - AI systems **used exclusively for military, defence, or national security purposes** (regardless of who operates them)
 - **Recital 24:** If an AI system originally built for defence or national security is **used outside those domains**, the AI Act **does apply!** E.g., dual-use AI technologies
 - What about private actors who were delegated national security tasks?
 - AI systems **developed or used outside the EU** where the **output is used in the EU only for military, defence or national security**
- **EU's Common Security and Defence Policy**
- **Public International Law:** more suitable to regulate AI systems in the context of military and defence activities (Chapter 2 of the Title V TEU)
- Challenges involving **the distinction between** AI systems used for **national security** (which are exempt) and those **used for law enforcement** (HRAIS).

Pentagon – Anthropic dispute

Article 2(3) of the EU AI Act exempts systems used exclusively for military purposes from the regulation. In light of the dispute between the Pentagon and Anthropic, in your view, should this exemption continue to apply when public-sector actors procure or repurpose general-purpose AI? Who should be responsible for preventing misuse: the developer, the state, or both?

Feedback – Information Law & Policy



Methods of Assessment:

- 1) a **3-hour 'seen' examination** with the questions made available to the students in advance (85% of the final grade).
- 2) **seminar attendance and participation** (15% of the final grade).

[Student Consultation: Assessment Change for Information Law & Policy \(LAW 5206\) – Fill out form](#)

Summative assessment

3-hour seen examination (100% final mark)

- You must answer 3 out of 6 questions
- Max 3.750 words
- Questions will be made available **at least 48h** in advance
- Spring exam diet (Wednesday, 06 May at 2pm)

Everything will take place online!

Thank you!